

MEMORANDUM

October 3, 2024

TO: File No. 10-242

FROM: Charles Lee
Office of Commissioner Mark T. Uyeda

RE: Meeting with Representatives of Investors Exchange (“IEX”)

On October 3, 2024, Commissioner Mark T. Uyeda and his counsel, Charles Lee, had a meeting with IEX. Commissioner Uyeda and the attendees met virtually. The IEX representatives in attendance consisted of:

- Ronan Ryan, Chief Operating Officer, IEX Group
- Stan Feldman, Chief Operating Officer, IEX Exchange
- John Ramsay, Chief Market Policy Officer, IEX Exchange

The participants discussed the Form 1 exchange application of 24X National Exchange LLC (“24X,” and such application, the “Application.” The IEX representatives provided the following comments regarding the Application.

- The hours that trading systems would need to operate would more than double from 80 hours to 168 hours.
 - The additional hours cause substantial additional cost and complexity.
- 24X has not demonstrated a need and demand for overnight trading.
 - Retail investors have multiple ways to submit orders overnight and have not been speaking in large numbers to expand trading hours.
- 24X should be required to publish to the consolidated tape.
 - Without such a requirement, market participants would be forced to connect to 24X, and 24X and other exchanges operating overnight would have a monopoly on market data.
- 24X’s proposal to outsource all hardware and software to MEMX Technologies, LLC raises concerns.
 - A large and impactful single point of failure would result from such outsourcing.